

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

EPIC FREIGHT SOLUTIONS LLC and
OMNI LOGISTICS LLC,
RESPONDENTS.

**COMPLAINANT’S MOTION TO ACCEPT LATE FILING OF COMPLAINANT’S
OPENING BRIEF AND SUOPRTING DOCUMENTS AND FOR OTHER RELIEF**

Pursuant to Rules 1, 10, 69, 71 and 102 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their counsel, Tiffany Comprés, Esq., respectfully submit this motion requesting that the Presiding Officer accept the late filing of Complainant’s Opening Brief, Proposed Findings of Fact, Appendix, and other supporting documents due to the exceptional circumstances set forth below and as justice may require, and allow for additional time for the filing of Respondents’ opposition papers and Complainant’s reply pursuant to a revised briefing schedule.

BACKGROUND & RELEVANT FACTS

On November 29, 2022, complainant TPG PRESSURE INC. (“**Complainant**” or “**TPG**”), through its undersigned attorneys, filed their Verified Complaint Pursuant To 46 U.S.C. § 41301(a) (the “**Complaint**”) against Omni Logistics, LLC (“**Omni**”; “**Respondent**”). On January 24, 2023, Omni moved to dismiss the Complaint for lack of subject matter jurisdiction and failure to state a

claim. Complainant filed a motion for leave to amend the Amended Complaint on February 9, 2023, seeking to amend its Complaint to add Epic as a defendant along with new factual allegations. The Commission granted Complainant's request for leave to amend and denied Omni's motion to dismiss as moot on February 23, 2023.

On February 27, 2023, Complainant, by its undersigned attorneys, filed its First Amended Verified Complaint Pursuant To 46 U.S.C. § 41301(a) (the "**Amended Complaint**") against Epic Freight Solutions LLC ("**Epic**") and Omni (Omni and Epic together are "**Respondents**").

On March 24, 2023, Respondents filed a Partial Motion to Dismiss Complainant's First Amended Verified Complaint for Failure to State a Claim.

On April 25, 2023, Chief Administrative Law Judge Erin M. Wirth ordered that Respondents' motion to dismiss be denied and further ordered that given the delays in the proceeding, Respondents shall submit their answer by May 2, 2023, and the parties shall submit a joint status report with proposed schedule by May 9, 2023.

On May 2, 2023, Respondents, submitted their Answer and Affirmative Defenses to the First Amended Verified Complaint.

On May 9, 2023, TPG and Respondents filed a joint status report with proposed schedule ("**JSR**"). Following this JSR, the Chief Administrative Law Judge Erin M. Wirth, entered a Scheduling Order on May 12, 2023.

After two revised Scheduling Orders were entered in this matter, a revised Briefing Schedule was issued by Chief Administrative Law Judge Erin M. Wirth on January 16, 2024.

Complainant's Brief was due Thursday, February 15, 2024.

On Saturday February 10, 2024, Tiffany Comprés, lead counsel for Complainant, began to feel ill. After only getting worse, she went to seek urgent care as soon as possible, which was on

February 13, 2024. She was diagnosed with severe flu and was instructed not to return to work until Friday, February 16, 2024. On February 13, 2024, the same day Ms. Comprés was diagnosed with severe flu, Complainant's filed an Emergency Motion to Extend Deadline to File Brief. Ms. Comprés was still in the process of finalizing Complainant's brief when she fell ill. TPG makes this request in good faith and not for the purpose of delay. TPG's request is predicated on the foregoing facts regarding the unfortunate illness of its lead counsel. Absent that event, TPG would be able to timely file its Brief and intended to do so. However, under the circumstances, TPG simply needed additional time.

ARGUMENT

I. Standard of Review

46 C.F.R. 502.1 reads in relevant part, as follows:

The rules in this part govern procedure before the Federal Maritime Commission, hereinafter referred to as the "Commission,"...shall be construed to secure the just... and inexpensive determination of every proceeding.

46 C.F.R. 502.10 reads in relevant part, as follows:

Except to the extent that such waiver would be inconsistent with any statute, any of the rules in this part, except §§502.11 and 502.221, may be waived by the Commission or the presiding officer in any particular case to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires.

46 C.F.R. 502.10 reads in relevant part, as follows

§502.102 Enlargement or reduction of time to file documents...

(b) Motions submitted after the scheduled filing date will be considered a request to accept late filing and must be accompanied by the document. These motions will only be considered when exceptional circumstances are shown or as justice may require.

As explained by the Presiding Officer in the matter of *Santa Fe Discount Cruise Parking, Inc., d/b/a EZ Cruise Parking; Lighthouse Parking Inc.; and Sylvia Robledo d/b/a 81st Dolphin Parking v. The Board of Trustees of the Galveston Wharves; and the Galveston Port Facilities Corporation*, (Order on Pending Motions and Partial Dismissal, FMC Docket No.: 14-06, 2014 WL 7404584 * 11 November 21, 2014) :

Commission Rule 1 requires that its rules “be construed to secure the *just*, speedy, and inexpensive determination of every proceeding,” 46 C.F.R. § 502.1 (emphasis added), and any of the rules in this part, except § 502.11 and 502.153, may be waived by... the presiding officer in any particular case to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires.” 46 C.F.R. § 502.10...The Commission traditionally has sought to do equity rather than permit a party to be cut off from an opportunity to be heard due to a rigid or mechanical application of the Commission’s rules.” Verucci Motorcycles, LLC v. Senator International Ocean, LLC, FMC No. 06-05, Order at 4 (FMC May 7, 2008) (Order Reopening the Proceeding).

As further explained by the Presiding Officer in the matter of *Muhammad Rana v. Michelle Franklin, d.b.a. “The Right Move Inc.”*, (Order Denying Motions for Default and Summary Decision, to Strike, and to Compel; Discharging Show Cause Order; and Scheduling Order, FMC Docket No.: 19-03, dated October 30, 2019), in the absence of a party demonstrating that it has been “...prejudiced by the late filing...” of a document with this Commission, such filing should not be stricken.

II. The Late Filing is Justified Based upon Exceptional Circumstances and as Justice May Require, and Respondents Have Not Been Prejudiced by the *de minimus* Delay

In the first instance, and pursuant to the Standard of Review as set forth above, the undersigned counsel is prepared to provide the details regarding her medical issue to the Presiding Officer (together with supporting documentation for *in camera* inspection if requested by the Presiding Officer), on the issue of exceptional circumstances.

On February 13, 2024, Complainant's requested emergency relief to extend the deadline for the filing, which was due on February 15, 2024, to February 22, 2024 – an extension to which Counsel for Respondents consented. Further and as set forth above, Complainant's late filing of their Brief and the supporting documents by seven (7) days after the filing date of Thursday, February 15, 2024, cannot reasonably be construed to have prejudiced the parties herein.

Inasmuch as the Presiding Officer may, pursuant to the Standard of Review set forth above, construe the Rules "...to secure the *just*, speedy, and inexpensive determination of every proceeding..." and waive certain rules (such as rules regarding the timing of the filings described herein) "...to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires..." and inasmuch as the Commission has "...traditionally has sought to do equity rather than permit a party to be cut off from an opportunity to be heard due to a rigid or mechanical application of the Commission's rules..." it is respectfully submitted that in light of the circumstances, the Presiding Officer is requested to accept the late filing of Complainant's Brief, Proposed Findings of Fact and Appendix by seven (7) days after the original filing date.

RELIEF REQUESTED

It is therefore respectfully requested that the Presiding Officer now issue an Order accepting the late filing of Complainant's Opening Brief, Proposed Findings of Fact, Appendix, and other supporting documents for the exceptional circumstances set forth herein and as justice may require and allow for additional time for the filing of Respondents' opposition papers and Complainant's reply pursuant to a revised briefing schedule to be determined by the Presiding Officer.

WHEREFORE, it is respectfully requested that Complainants' motion be granted in its entirety.

Dated: February 22, 2024

Respectfully submitted,
PIERSON FERDINAND LLP

By: /s/ Tiffany N. Compres

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the Complainant's Motion to Accept Late Filing of Complainant's Opening Brief and Supoprtng Documents and for Other Relief upon Respondents' Counsel at the following address:

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By: /s/ Tiffany N. Comprés
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Dated: February 22, 2024